

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC  
OF LIBERIA, SITTING IN ITS OCTOBER TERM A.D. 2024

BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....CHIEF JUSTICE  
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE  
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE  
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE  
BEFORE HER HONOR: CEATNEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

The Intestate Estate of Margaret Stubblefield, Mrs. )  
Emily Nagbe and all other occupants under their control )  
of the City of Monrovia, Republic of Liberia )  
..... Appellants )

Versus

APPEAL

Ma Bendu Kamara and Children of the City of )  
Monrovia, Liberia .....Appellees )

GROWING OUT OF THE CASE:

Ma Bendu Kamara and Children of the City of )  
Monrovia, Liberia .....Plaintiffs )

Versus

ACTION OF  
EJECTMENT

The Intestate Estate of Margaret Stubblefield, Mrs. )  
Emily Nagbe and all other occupants under their control )  
of the City of Monrovia, Republic of Liberia )  
..... Defendants )

Heard: November 20, 2024

Decided: February 17, 2025

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

The present appeal emanates from the final ruling of the Sixth Judicial Circuit, Civil Law Court, Montserrado County, in an action of ejectment filed by the present appellees, Ma Bendu Kamara and Children against the present appellants, the Intestate Estate of Margaret B. Stubblefield et. al, in which final ruling, the trial judge presiding by assignment, His Honor Johannes Z. Zlahn (of sainted memory) affirmed the verdict of the jury in favor of the appellees, Ma Bendu Kamara et. al, adjudging the appellants, the Intestate Estate of Margaret B. Stubblefield et al liable in damages for their wrongful withholding of the appellees' property.

The pertinent facts as culled from the records show that on April 30, 2014, the appellees, plaintiffs below, Ma Bendu Kamara et. al filed a seven-count action of ejectment designating the Intestate Estate of Magaret B. Stubblefield, Emily Nagbe and all other occupants under their



authority and control as defendants and illegal occupants of a portion of their parcel of land.

The appellees basically alleged as follows, to wit:

That Ma Bendu Kamara and children are the bonafide owners of one (1) lot of land lying and situated in Jamaica Road Community, Bushrod Island, Montserrado County which they obtained through legitimate purchase in March 22, 2013, from their grantor, the Intestate Estate of Hiwala Killen by and thru its administrators Emmanuel L. Killen and Mary Killen; that during the life time of Hilwala Killen, she purchased one (1) acre of land from Jacob Fay, Sombo Gbee, and Henry V. Logan, in 1961; that the appellants without any color of right encroached upon a portion of their one (1) lot of land and continue to exercise such unauthorized control over same despite repeated attempts to have the appellants vacate the subject property; and that for the wrongful withholding and unauthorized use of the appellees' property by the appellants the appellees are entitled to damages as a matter of law.

The Sheriff's Returns dated May 2, 2014, show that Emily Nagbe and Musu Johnson were served the court's precepts and brought under the jurisdiction of the trial court, but the record is void of proof of service on the other defendants named in the complaint.

On May 9, 2014, co-appellant Emily Nagbe filed a two-count answer to the appellees' complaint averring basically that she obtained her authorization to occupy the subject property from the administrator of the Intestate Estate of Margaret Stubblefield and that any complaint regarding the subject property should be filed against the administrator of the Intestate Estate of Margaret Stubblefield. As regards Musu Johnson who was served, the records are void as to any answer filed in her behalf although brought under the jurisdiction of the court.

On May 10, 2014, the Intestate Estate of Margaret Stubblefield by and thru its administrator Roswell Trinity filed a five-count motion to intervene along with an intervenor's answer essentially asserting that he is the administrator of the Intestate Estate of Margaret Stubblefield by virtue of valid letters of administration issued by the Monthly and Probate Court for Montserrado County; that during her life time, Margret Stubblefield purchased the property in 1969 from Wilmot Stubblefield, the latter who prior to the execution of the deed in favor of Margaret Stubblefield, purchased same from the Republic of Liberia through a public land sale in 1954; that the intervention was being sought to avoid the interest of the estate from being adversely affected by a judgment of the said court; and that the title instruments and averments in the appellee's complaint are products of fraud, and of deceit and misrepresentation, respectively due to the fact that the appellants legitimately purchased the subject property from the Republic of Liberia through a public land sale deed.



The appellees filed a five-count resistance to the motion to intervene filed by the Intestate Estate of Margaret Stubblefield contending that the motion to intervene is shrouded with fraud and is only intended to unduly delay trial. The trial judge having heard the motion to intervene granted same. Hence, the appellant, the Intestate Estate of Margaret Stubblefield intervened as a proper party defendant.

Subsequently, the appellees filed their reply to the answer filed by Emily Nagbe as well as the intervenor, the Intestate Estate of Margaret Stubblefield, basically recounting the averments in their complaint and denying the averments in both answers.

On January 26, 2015, the appellees filed a five-count motion requesting the trial court for the conduct of an investigative survey on grounds that it is in the best interest of the disputing parties to conduct an investigative survey to determine the legitimate owner of the disputed property. The appellants having interposed no objection to the said motion, the trial judge ordered the clerk of court to request the then Ministry of Lands, Mines and Energy to submit the name of a licensed and qualified surveyor to lead the investigative survey team and further ordered the parties to submit the names of their respective surveyors for the conduct of the investigative survey. Surveyor Tonnia Buxton represented the appellees; Surveyor Moses J.E.D. Mapleh represented the appellants, the Intestate Estate of Margaret B. Stubblefield; while Surveyor Kempson S. Murray, Sr. of the then Ministry of Lands, Mines and Energy served as Chairman of the Investigative Survey Team.

On March 3, 2015, the investigative survey team issued survey notices informing the disputing parties and adjoining landowners about the conduct of the survey on Wednesday, March 11, 2015 at 11:00 am. The survey was conducted on the said date in the presence of the disputing parties and the adjoining landowners, and a Report dated June 29, 2015, read before the trial court on July 23, 2015. We quote herein below excerpts from the investigative survey report as follows, to wit:

"...Observation

It was observed from the investigative survey and careful perusal of the various deeds of the disputed area that the majority of the properties within the area of the disputed property were sold by Mr. Emmanuel Killen.

The Representatives of Margret Stubblefield were only able to identify one (1) cornerstone for the Stubblefield's property.

That no one in the community was willing to have the investigative team retain copies of their deed (s), diagram (s) or any other document... We also observed and discovered that having



only plotted one single point for Madam Stubblefield, makes it very difficult for the deed to be plotted on the map.

That the deed description considered as commencing point is also not defined for the Margaret Stubblefield's deed. Therefore, it cannot be plotted on the map.

That the deed presented to the surveyors by Emmanuel Killen and his ground location has a relationship with a little difference in the ground.

That the deed claimed by the Stubblefield which supposed to have the market ground has no relationship to any of the adjoining parties or property sold to anyone within the perimeter of the disputed property.

That the deed claimed and owned by Mr. Emmanuel Killen proved to us that Madam Bendu Kamara's deed falls within the perimeter of her grantor.

### **Recommendation**

I most respectfully recommend to the Honorable Court that Madam Bendu Kamara et. al be put in full possession of the disputed property as they legitimately owns the said parcel of land according to the deed presented by Mr. Killen, her grantor. Her undisputed ownership is not only limited to her mother's deed and her own deed but the confirmation of Mary Stubblefield's deed been linked to the Stockton Creek and scale of the deed which cannot be approved by her own surveyor."

On September 18, 2015, the appellants filed a thirteen-count objection to the investigative survey report, on grounds that Mr. Emmanuel Killen, the appellees' grantor did not present any deed for the conduct of the investigative survey; that the Chairman of the Investigative Survey Team erred when he asserted that most of the properties in the area were sold by the appellees' grantor when Emmanuel Killen made claims to only one (1) lot of land in the area; and that the Chairman did not state the difference when he indicated in the investigative survey report that the deed presented by Mr. Killen and his ground location had a relationship but with a little difference.

On September 28, 2015, the appellees filed a four-count resistance to the appellants' objection to the investigative survey report along with a motion to strike contending that the statutory period for the filing of an objection to the investigative survey report is thirty (30) days; that the investigative survey report having been read on July 23, 2023, the last day for the filing of the appellants' objection to the investigative survey report should have been August 23, 2023 and not September 18, 2023.

On October 22, 2015, the trial judge ruled on the objection as follows, to wit:



"It is established by our practices that after the reading of an investigative survey report the party objecting thereto is allotted thirty (30) days within which to interpose an objection if any, to the report. The rationale for this limitation is obvious as its purpose is to ensure that a matter is not unnecessarily delayed. The court says further that the thirty (30) day period referred to herein is notoriously and openly known by all practicing counsels since it is the rule that it is used by all courts relative to investigative survey unless same is specifically varied by the court based upon an application. There being no application before the court in this matter for the variation of the thirty (30) day timeframe established by practice in this jurisdiction, the objection filed outside this timeframe is a ground to have it stricken as if no such objection was interposed by the objector."

Following the denial of the objectors' objection to the investigative survey report, the trial was proceeded with by the production of oral and documentary evidence by witnesses of both the appellants and the appellees. At the close of the evidence, the trial judge forwarded the matter to the jury for their determination. Following its deliberation, the jury returned a unanimous verdict in favor of the appellees. The appellants thereafter filed a motion for new trial and same was resisted by the appellees, heard and denied by the trial judge. The court entered a final ruling affirming the jury's unanimous verdict.

We also quote hereinunder excerpts from the trial court's final ruling as follows, to wit:

"The Investigative Survey Report provides in relevant part follows:

"Observation

It was observed from the investigative survey and careful perusal of the various deeds of the disputed area that the majority of the properties within the area of the disputed property were sold by Mr. Emmanuel Killen.

The Representatives of Mary Stubblefield were only able to identify one (1) cornerstone for the Stubblefield's property.

That no one in the community was willing to give their deed (s), diagram (s) or any other document to the survey team to aid the smooth conduct of the investigative survey. We also observed and discovered that having only plotted one single point for Madam Stubblefield, makes it very difficult for the deed to be plotted on the map.

That the deed description considered as commencing point is also not defined for the Margaret Stubblefield's deed. Therefore, it cannot be plotted on the map.

That the deed presented to the surveyors by Emmanuel Killen and his ground location has a relationship with a little difference in the ground.



That the deed claimed by the Stubblefield which supposed to have the market ground has no relationship to any of the adjoining parties or property sold to anyone within the perimeter of the disputed property.

That the deed claimed and owned by Mr. Emmanuel Killen proved to us that Madam Bendu Kamara's deed falls within the perimeter of her grantor.

#### Recommendation

I most respectfully recommend to the Honorable Court that Madam Bendu Kamara et. al be put in full possession of the disputed property as she legitimately owns the said parcel of land according to the deed presented by Mr. Killen, her grantor. Her undisputed ownership is not only limited to her mother's deed and her own deed but the confirmation of Mary Stubblefield's deed been linked to the Stockton Creek and scale of the deed which cannot be approved by her own surveyor."

In addition to the investigative survey and the testimonies of the witnesses for the parties, the parties also admitted into evidence their respective title deeds, which were reviewed by the jury and the jury determined, as a matter of fact that the disputed property belongs to the plaintiffs. Therefore, the defendants' argument that the jury's verdict is contrary to the weight of the evidence is unfounded and must therefore fail.

#### Conclusion

Given the conflicting evidence presented at trial, coupled with the jury's authority as the sole judges of the facts and the additional fact that the evidence preponderates in favor of the plaintiffs, this Court holds and rules that the jury's verdict of liable and the award of One Hundred Twenty-Six Thousand Liberian Dollars (LD \$126,000.00) as damages are not contrary to the weight of the evidence adduced at trial and hence, confirms and affirms the jury's verdict."

The appellants noted exceptions to the final ruling of the trial judge by filing an eleven-count bill of exceptions, of which this Court has determined that only counts 2, 6, and 7 thereof are germane for the disposition of the issues raised, and will limit our review to same accordingly. Our position is in consonance with the law that "the Supreme Court is not bound to pass on all of the issues raised in the counts in the bill of exceptions but only those it finds germane to the disposition of the case." *CBL v. TRADEVCO*, Supreme Court Opinion, October Term 2012; *Knuckles v. TRADEVCO*, 40 LLR 49, 53 (2002); *Vargas v. Morns*, 39 LLR 18, 24; *Rizzo et. al v. Metzger et. al*, 38 LLR 476, 478 (1997); *Transport of Belgium v. Family Textile Center*, 38 LLR 49, 52 (1995).



We quote the counts below:

2. That Your Honor committed reversible error when you denied appellants' request for the writ of subpoena *ad testificandum* to be served on the Government's technical representative so as to explain the report of the survey to the jury that has to do with:

a) that the appellants encroached upon the appellees' property but he failed to state the extent of the encroachment in terms of inches, yards, feet; (b) that the deed presented to the surveyors by Mr. Emmanuel Kilien and his ground location has a relationship with a little difference in the ground location so as to clearly explained the little difference.

6. That Your Honor committed reversible error when over the exception of the appellants you recorded the verdict of the empaneled jury which verdict was against the weight of the evidence adduced at the trial.

7. That Your Honor committed reversible error when you denied the appellants/movants' motion for new trial and granted the appellees' resistance where the verdict was manifestly against the weight of the evidence adduced at the trial.

Before proceeding to review the pertinent counts of the appellant's bill of exceptions, we deem it appropriate to address an issue which the trial judge passed on in his ruling. In his ruling, the trial judge incorrectly stated that it is established by our practice that after the reading of an investigative survey report the party objecting thereto is allotted thirty (30) days within which to interpose an objection. This Court notes that the thirty (30) period mentioned by the trial judge in his ruling for the filing of an objection is only applicable to arbitration proceedings and not investigative survey. An investigative survey is for the settlement of certain technical aspects of a case which aids the court and/or jury in determining an issue and is used as evidence in aiding the court to determine a particular technical nature or controversy of a matter before it. It has no thirty (30) day timeframe for the filing of an objection. Moreover, an investigative survey report is not signed by the representatives of any of the parties unlike arbitration where each of the representatives is authorized by law to sign on behalf of the party to the suit.

We will now proceed to address these counts in the appellant's bill of exceptions beginning with count 2.



The contention of the appellants as stated in count two (2) of the bill of exceptions is that the investigative survey team concluded in its report that the appellants encroached upon the appellees' property but he failed to state the extent of the encroachment in terms of inches, yards, feet; (b) that the investigative survey report failed to clearly explained the little difference when it concluded that the deed presented to the investigative survey team by Mr. Emmanuel Killen, the appellees' grantor corresponded with the ground location but with a little difference.

Our review of the investigative survey report reveals that the majority of the surveyors stated that the deed presented by Mr. Emmanuel Killen, the appellees' grantor, corresponded with the ground location of the disputed property but with a slight difference, but that the deed presented by the appellants did not correspond with the ground location of the disputed property nor that of any of the adjoining owners of properties. Assuming the investigative survey report has vividly described the appellants' encroachment on the appellees' property in inches, feet and yard and further state the slight difference of the appellees' deed with the ground location albeit corresponding with the ground location, we fail to see how such evidence bears any relevance to the issue at bar or would have changed the outcome of this case especially where the investigative survey report clearly proved that the appellants' deed did not correspond with the ground location of the disputed property or that of any of the adjoining parties. It is the law that "all evidence must be relevant to the issue; that is, it must have the tendency to establish the truth or falsehood of the allegations or denials of the parties." *Liberia Agriculture Co. (LAC) v Associated Dev. Co (ADC)*, Supreme Court Opinion, October Term A.D. 2012.

In counts 6 and 7 of the bill of exceptions which we will address jointly because they raised similar issues as to the jury's verdict confirmed by the trial judge being against the weight of the evidence adduced at the trial; and that trial judge also committed reversible error when he denied the appellants' motion for new trial.

It is trite law, practice and procedure in this jurisdiction that issues of facts are within the exclusive province of the jurors or where a party waives the right to jury trial the judge sits alone as the trier of facts. The Supreme Court has been unwavering in holding that it is the function of a jury or a judge sitting without a jury, to hear and decide the factual issues upon the evidence adduced at a trial; that a verdict presented by the petit jurors may be set aside, where the verdict is contrary to the weight of the evidence or in the interest of justice. *Embassy Suite Corporation v. The Management of Ecobank*, Supreme Court Opinion, March Term 2023; *Ketter v. Jones et al.* 41LLR 81, 85 (2002); Civil Procedure Law, Rev. Code 1: 26.4.

In the instant case, although the appellants have alleged that the verdict of the jury is contrary to the weight of the evidence, the appellants have not proffered the necessary proof to sustain such



*When this case was called for hearing, Counsellor Jonathan T. Massaquoi of the International Law Group, LLC appeared for the appellant. Counsellor Alhaji Swahilo A. Sesay Sesay, Johnson & Associates Law Chambers appeared for the appellees.*